

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1383

By: Dempsey

AS INTRODUCED

An Act relating to game and fish; amending 29 O.S. 2021, Section 4-130, as amended by Section 7, Chapter 6, O.S.L. 2024 (29 O.S. Supp. 2024, Section 4-130), which relates to waterfowl hunting; prohibiting nonresidents from hunting waterfowl on public lands on certain days; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 29 O.S. 2021, Section 4-130, as amended by Section 7, Chapter 6, O.S.L. 2024 (29 O.S. Supp. 2024, Section 4-130), is amended to read as follows:

Section 4-130. A. Except as otherwise provided in the Oklahoma Wildlife Conservation Code, no person may hunt or take any waterfowl during the open season on waterfowl unless the person has first obtained an Oklahoma waterfowl hunting stamp or license from the Director or authorized agents of the Director. Each person shall have the stamp or license in their possession when hunting or taking any waterfowl.

1 B. Persons excepted from the Oklahoma waterfowl hunting stamp
2 or license requirement of this section are:

3 1. Legal residents of Oklahoma under eighteen (18) years of
4 age; and

5 2. Legal residents of Oklahoma sixty-five (65) years of age or
6 older.

7 C. The Oklahoma waterfowl hunting stamp fee and waterfowl
8 license shall be for:

9 1. Residents eighteen (18) years of age or older - Twenty
10 Dollars (\$20.00); and

11 2. Nonresidents eighteen (18) years of age or older - Thirty
12 Dollars (\$30.00).

13 D. 1. The collection and remittance procedures applicable to
14 hunting license fees under this title shall apply to waterfowl stamp
15 or license fees.

16 2. The waterfowl stamp or license issued pursuant to this
17 section shall expire on June 30 of each year.

18 E. The Oklahoma Wildlife Conservation Commission may prescribe,
19 by regulation, the form, design and manner of issuance, if any, of
20 the waterfowl stamp, which could include the selection of art for
21 such stamp from an art contest regulated by the Commission.

22 F. 1. Any person arrested for hunting or taking any waterfowl
23 during the open season on waterfowl without a valid Oklahoma
24 waterfowl hunting stamp or license as required by the provisions of

1 subsection A of this section may purchase a substitute temporary
2 thirty-day stamp or license from the arresting game warden in lieu
3 of posting bond. Proof of hunter safety certification shall not be
4 required for the temporary substitute stamp or license. The fee for
5 a substitute stamp or license purchased pursuant to the provisions
6 of this subsection shall be:

7 a. for legal residents - One Hundred Dollars (\$100.00),

8 and

9 b. for nonresidents - One Hundred Seventy-five Dollars
10 (\$175.00).

11 2. The fees from the temporary stamp and license purchased
12 pursuant to the provisions of this subsection shall be deposited in
13 the Wildlife Conservation Fund, to be used exclusively in this
14 state, for the purpose of developing, managing, preserving,
15 restoring and maintaining wetland habitats and for the conservation
16 and management of waterfowl and ecologically related species.

17 G. Nonresidents are limited to hunting waterfowl on all public
18 land located south of Interstate 40 and east of Interstate 35 on
19 Monday through Thursday and are prohibited from hunting waterfowl on
20 public land Friday through Sunday.

21 H. Any person convicted of violating any of the provisions of
22 this section shall be punished by a fine of not less than Twenty-
23 five Dollars (\$25.00) nor more than One Hundred Dollars (\$100.00).

1 ~~H.~~ I. Nothing in this title shall prohibit a person from
2 hunting waterfowl exclusively on their own property without an
3 Oklahoma waterfowl hunting stamp or license.

4 SECTION 2. This act shall become effective November 1, 2025.

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